

		1033.5, subdivision (a)(9), transcript costs are only recoverable if they are ordered by the court. Otherwise, transcript costs are prohibited. (Code Civ. Proc., § 1033.5, subd. (b)(5).) As this court did not order transcripts, those costs are not recoverable by Defendant. (<i>Moore v. City & Cnty. of San Francisco</i> (1970) 5 Cal. App. 3d 728, 739–40.) Plaintiff shall give notice.
202	<i>Siguenza vs. Nynes Collectives LLC</i>	<u>Motion for Sanctions</u> Before the court is a motion for evidentiary sanctions, or alternatively, for monetary sanctions filed by plaintiffs Edward Siguenza and Nerherley Machuca Rivas (Plaintiffs together) related to depositions. The motion is DENIED. The court may issue evidentiary and/or monetary sanctions for abuses of the discovery process, including failure to comply with a court order or failure to submit to an authorized method of discovery. (Civ. Proc. Code §§ 2023.010, 2023.030, and 2025.450.) Plaintiffs contend defendants Nynes Collectives LLC, fka Global Beauty, Inc., and Allen Nguyen (Defendants together) failed to produced persons most knowledgeable and/or failed to appear at depositions previously ordered by the court. The court acknowledges there were issues with Defendants scheduling the depositions between the IDC hearing on September 8, 2025, and December, however the depositions do appear to have been on calendar in January. Plaintiffs’ counsel subsequently took those off calendar due to trial. (Haddad Decl. ¶ 25-26 and 30, Ex. 17.) Instead of immediately rescheduling the depositions, Plaintiffs waited almost four months before sending new notices of depositions. (Haddad Decl. ¶ 32.) When current defense counsel stated he had trial on those dates, defense counsel offered on two occasions the alternative date of the first week of June. (Rumm Decl. ¶¶ 6-7;

Haddad Reply Decl., Ex. 29.) Plaintiffs ignored the alternative dates and instead filed the present motion.

It appears to the court there is blame from both sides for the depositions not proceeding in a timely manner. As such, issuance of evidentiary sanctions would be improper and are denied. The request for monetary sanctions appears to be based solely on the expenses incurred with bringing the present motion. Monetary sanctions are also denied as there is no basis provided in the motion.

Motion for Leave to Amend

Before the court is a motion for leave to file a second amended complaint (SAC) filed by Plaintiffs. The motion is **GRANTED** in part and **DENIED** in part.

Plaintiffs move for leave to file the SAC pursuant to add as defendants Noel Bantugan (Bantugan), Chop Chop Fulfillment LLC (CCF), and Nynes Holding LLC (NHLLC). The court may permit amendment to the complaint pursuant to Code of Civil Procedure sections 473 and 576.

Plaintiffs contend they first learned about the potential liability of Bantugan and CCF on August 13, 2026, when they discovered the corporate defendants shared the same mailing address, office address, and agent for service of process. The SAC seeks to add the new defendants in for unnamed Does under alter ego and successor liability theories. The scope of the action is not being widened by new causes of action.

To add a defendant as a Doe, Plaintiffs must be ignorant as to both the true name of the defendant and sufficient facts which support liability. (Civ. Proc. Code § 474; *Gen. Motors Corp. v. Superior Ct.* (1996) 48 Cal. App. 4th 580, 593–95.)